

(2) Notwithstanding anything contained in any other law for the time being in force the provisions of this Act shall apply to the carriage of passengers or goods by the mode of transport referred to in sub-section (1).

Comment

Section 183 empowers the railway administration to provide or maintain any mode of transport for the purposes mentioned therein.

184. Taxation on railways by local authorities. – (1) Notwithstanding anything to the contrary contained in any other law, a railway administration shall not be liable to pay any tax in aid of the funds of any local authority unless the Central Government, by notification, declares the railway administration to be liable to pay the tax specified in such notification.

(2) While a notification of the Central Government under sub-section (1) is in force, the railway administration shall be liable to pay to the local authority either the tax specified in the notification or, in lieu thereof, such sum, if any, as an officer appointed in this behalf by the Central Government may, having regard to all the circumstances of the case, from time to time, determine to be fair and reasonable.

(3) The Central Government may at any time revoke or vary a notification issued under sub-section (1).

(4) Nothing in this section shall be construed to prevent any railway administration from entering into a contract with any local authority for the supply of water or light, or for the scavenging of railway premises, or for any other services which the local authority may be rendering or be prepared to render to the railway administration.

Comment

Section 184 provides for an exemption to the railway administration from the payment of tax to any local authority unless directed by the Central Government.

185. Taxation on railways for advertisement. – (1) Notwithstanding anything to the contrary contained in any other law, a railway administration shall not be liable to pay any tax to any local authority in respect of any advertisement made on any part of the railway unless the Central Government, by notification, declares the railway administration to be liable to pay the tax specified in such notification.

(2) The Central Government may at any time revoke or vary a notification issued under sub-section (1).

Comment

Section 185 provides for exemption to the railway administration from the payment of tax to any local authority in respect of advertisement made on any part of the railway unless directed by the central Government.

186. Protection of action taken in good faith. – No suit, prosecution or other legal proceeding shall lie against the Central Government, any railway administration, a railway servant or any other person for anything which is in good faith done or intended to be done in pursuance of this Act or any rules or orders made there under.

Comment.

Section 186 provides that no suit, prosecution or other legal proceedings shall lie against the Central Government, railway administration, railway servant or any other person for anything done in good faith or intended to be done in pursuance of this Act.

187. Restriction on execution against railway property. – (1) No rolling stock, machinery, plant, tools, fittings, materials or effects used or provided by a railway administration for the purpose of traffic on its railway, or of its station or workshop, shall be liable to be taken in execution of any decree or order of any court or of any local authority or person having by law the power to attach or distrain property or otherwise to cause property to be taken in execution, without the previous sanction of the Central Government.

2) Nothing in sub-section (1) shall be construed to affect the authority of any court to attach the earnings of a railway in execution of a decree or order.

188. Railway servants to be public servants for the purposes of Chapter IX and Sec.409 of the Indian Penal Code-

1) Any railway servant, who is not a public servant within the meaning of Sec.21 of the Indian Penal Code(45 of 1860) shall be deemed to be a public servant for purposes of Chapter IX and Sec.409 of that code.

2) In the definition of 'legal remuneration' in Sec.161 of the Indian Penal Code(45 of 1860), the word "Government"

189. Railway servants not to engage in trade:-

A railway servant shall not-